Ram Narain Chahalia vs State Nct Of Delhi on 20 September, 2022

Author: Anu Malhotra

Bench: Anu Malhotra

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 1404/2022

RAM NARAIN CHAHALIA ..... Petitioner
Through: Mr.Arpit Batra, Advocate

versus

STATE NCT OF DELHI ..... Resp
Through: Mr.Tarang Srivastava, APP fo
with SI Barjesh Redhu

CORAM:
HON'BLE MS. JUSTICE ANU MALHOTRA
ORDER

% 20.09.2022 Pursuant to the proceedings dated 4.8.2022, the applicant is stated to have joined the investigation of the case. The updated status report dated 23.8.2022 under signatures of the SHO Police Station Inderpuri has been submitted by the State and taken on record qua FIR No. 125/2016 Police Station Inderpuri registered under Sections 406/409/420/467/468/471/120B of the Indian Penal Code, 1860.

It has been submitted by the applicant that apart from his having earlier been posted as Head of the Department of the company Davis Value Cards Pvt. Ltd.in which he was upgraded as a Director and as a consequence thereof signed routinely on the documents of the company, the applicant has no other role to play. The status report that the State has submitted dated 18.7.2022 states inter alia to the effect that that bank accounts have been analyzed in which it has been found that in Laxmi Vilas Bank, Arun Sood, Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.09.2022 13:32:34 This file is digitally signed by PS to HMJ ANU MALHOTRA.

Rajdeep Maan and Ram Narayan Chahaliya, (Ram Narayan Chahaliya being the present applicant), were applicants in the bank opening form and the cheated money is stated to have been deposited vide cheque Nos. 64427, 64428, 64426 and 64429, with it having been submitted by the State that the applicant was officially a Director of the company w.e.f. 17.1.2014 and that he would thus have the knowledge of the working process and the intent of the company to cheat and commit fraud with persons. It is also informed on behalf of the State that all other accused in the instant case are absconding and three of them, i.e., Arun Sood, Sumit Verma and Rajdeep Maan have been declared proclaimed offenders but the main allegations are levelled against Arun Sood and Rajdeep Maan.

The applicant in the instant case has not denied the signatures on the account opening form of the Lakshmi Vilas Bank Account No. 0504360000000570 as mentioned herein above has stated that he signed in a routine manner on the asking of the accountant of the company and did not know the transactions made through the said account.

The applicant is stated to be aged 75 years with no previous adverse antecedents against him and has joined the investigation pursuant to the directions dated 4.8.2022, in view thereof, the applicant in the event of arrest be released on bail on his furnishing a personal bond in the sum of Rs.50,000/- with one surety in the like amount to the satisfaction of the Trial Court with directions that:

the applicant shall not leave the country without the permission of the Trial Court;

the applicant shall appear before the Investigating Officer as and when required;

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the applicant shall keep his mobile phone on at all times and drop a pin on the Google map to ensure that his location is available to the Investigating Officer and; the applicant shall commit no offence whatsoever during the period that he is on anticipatory bail. The petition is disposed of accordingly.

ANU MALHOTRA, J SEPTEMBER 20, 2022/sv Signature Not Verified Digitally Signed By:SUMIT GHAI Signing Date:22.09.2022 13:32:34 This file is digitally signed by PS to HMJ ANU MALHOTRA.